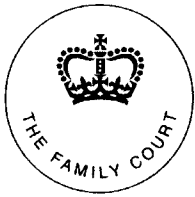


General Form of Order - Ancillary Relief



In the Family Court at BRISTOL	
Case Number Always quote this	BV20D01752
Applicant	Nadia Zahmoul
Respondent	Karim Nouredine Zahmoul
Co-Respondent	
Applicant's Solicitor's ref	DCP/SLF
Respondent's Solicitor's ref	

The marriage of Nadia Zahmoul and Karim Nouredine Zahmoul

Before Her Honour Judge Cope sitting at the Family Court at Bristol, Bristol Civil Justice Centre, 2 Redcliff Street, Bristol, BS1 6GR

The Matrimonial Causes Act 1973

The Marriage of Nadia Zahmoul and Karim Nouredine Zahmoul

After hearing Joe Rainer of counsel for the applicant and Phillip Blatchly of counsel for the respondent, and after consideration of the documents lodged by the parties.

ORDER MADE BY HER HONOUR JUDGE COPE ON 7 APRIL 2021 SITTING IN PRIVATE AT A FIRST DIRECTIONS APPOINTMENT

WARNING: IF YOU DO NOT COMPLY WITH THIS ORDER, YOU MAY BE HELD TO BE IN CONTEMPT OF COURT AND YOU MAY BE SENT TO PRISON, BE FINED, OR HAVE YOUR ASSETS SEIZED.

The parties

1. The applicant is Nadia Zahmoul.

The respondent is Karim Nouredine Zahmoul.

Definitions

2. The “children of the family” are

a. Jade Mia Zahmoul, born on 14 May 2005, and

b. Lila Mae Zahmoul, born on 31 May 2007

2. The “family home” shall mean the property at Hill Villa, Daisybank Road, Cheltenham GL53 9QQ.

3. Properties:

- a. “3093 West Arrowhead Road” shall mean the property at 3093 West Arrowhead Road, Teton Village, Wyoming 83025 USA.**
- b. “3100 West Arrowhead Road” shall mean the property at 3100 West Arrowhead Road, Teton Village, Wyoming 83025 USA.**
- c. “240 Frost Street” shall mean the four units (1-F, 4-F, 2-R and 3-R) at 240 Frost Street, Brooklyn, New York 11211, USA.**
- d. “189 Litchfield Lane” shall mean the property at 189 Litchfield Lane, Houston, Texas TX 77024, USA.**
- e. “308D L’Estivaliere” shall mean the property at 308D L’Estivaliere, 1,3,5 avenue de la Poste, Vallauris 06220, France.**
- f. “Residence Zayzafoune” shall mean the property at Residence Zayzafoune, Apt. 331, Jardin de Carthage, Tunis 1150, Tunisia.**

4. Crypto assets:

- a. “Storage Location” means any cold/offline device or online service used for the storage of keys.**
- b. “Crypto-asset” means any cryptocurrency, digital token or other form of digital asset based on distributed ledger technology or similar technology including blockchain technology, including but not limited to the cryptocurrencies known as Bitcoin (BTC), Ethereum (ETH), Bitcoin Cash (BCH), Bitcoin SV (BSV), OMG Network (OMG), The Graph (GRT), Helium (HNT), Litecoin (LTC), Koopring (LRC), Tezos (XTZ), Miotra (IOTA), Wrapped Bitcoin (WBTC), Uniswap (UNI), Complund (COMP) and 1inch Token (1INCH).**
- c. “Key” means any alphanumeric string, mnemonic phrase or other cryptographic code which forms either the public key or the private key corresponding to Crypto-assets or a password or code permitting access to or dealing with Crypto-assets.**
- d. “Trading Platform” means a service used for the purchase, sale or exchange of Crypto-assets, or a service used as a custodian for the storage of Crypto-assets and/or Keys, passwords or codes relating to Crypto-assets (including but not limited to Coinbase, Coinbase Pro, Binance, Zerion and Bitwyre).**

Recitals

5. The applicant reserves her position in respect of whether she will plead a case for reattribution pending receipt of the respondent’s replies to questionnaire.

6. It is recorded that the respondent’s D11 application dated 6 April 2021 in respect of purported Imerman material is resolved by the operative provisions of this order.

7. The dismissal of the applicant’s Part 25 application is on the basis of the test of necessity not having been made out but does not preclude the applicant from making a further application in due course.

8. The parties agree to have a Private FDR on a date to be agreed between the parties. The parties will agree on a Private FDR tribunal. The parties agree to meet the costs of the Private FDR tribunal's fee as to 50% each in the first instance.

9. The parties have each filed Forms H for this hearing which demonstrate:

- a. The applicant has incurred costs of £60,433.21 of which she has paid £25,904.06, and estimates further costs will be incurred by her to the conclusion of the private FDR of £133,506. These figures are inclusive of VAT.**
- b. The respondent has incurred costs of £71,701 of which he has paid £71,701 and estimates further costs will be incurred by him to the conclusion of the private FDR of £54,000. These figures are exclusive of VAT.**

Undertakings to the court

10. The respondent agrees and undertakes:

- a. Not to take any step to alter, destroy, erase or render unreadable the information stored on or in any storage location for his keys within his power, possession or control (or that of a third party).**
- b. Not to destroy, damage, alter or remove from the jurisdiction where currently located any device or document serving as a storage location for his keys, save those which travel with him such as his personal computer and save for the hotspots which he is deploying.**
- c. Not to communicate or disclose to another person any of his keys, or such other information or data that would allow a third party to deal with H's Crypto-assets.**
- d. To give such solicitors who shall act for him from time to time irrevocable instructions to hold in escrow the items at paragraph 28 below.**

11. The respondent agrees to be bound by the undertakings at paragraph 10 above until the sealing of a final financial order in these proceedings or further order of the court.

12. Both parties agree and undertake:

- a. To refrain from taking steps to diminish the balance of the funds held in all the parties' accounts held with the Bank of Jackson Hole with account numbers 584797 and 602458, as well as the accounts held with the Bank of Jackson Hole by the parties' companies, 3100AH-A LLC, 3100AH-B LLC and 3093AH LLC without the other party's consent in writing save for the purposes of:**
 - i. Meeting mortgage payments in respect of the mortgage secured over 3093 and 3100 West Arrowhead Road; and**
 - ii. Meeting necessary costs referable to the maintenance, upkeep and administration of those properties.**

13. The parties agree to be bound by their undertakings at paragraph 12 above until the sealing of a final financial order in these proceedings or further order of the court.

14. The applicant agrees and undertakes to make the following items available for collection by the respondent by no later than 13:00 on 9 April 2021:

- a. the respondent's three "hotspots" and all other electronic devices belonging to him in her possession save for the items included at paragraph 28;**
- b. the respondent's Tumi briefcase;**
- c. Any soft copy documents or material belonging to the respondent or derived from a device owned by him that does not fall within the definition of the "material" captured by paragraph 28 below, and;**
- d. A USB or other storage device containing an identical copy of the material stored on the USB or other storage device mentioned at paragraph 28 below.**

15. The applicant agrees and undertakes to forthwith collate all other post and hard copy documents of any kind belonging to or addressed only to the respondent currently within her power, possession or control, and make these available for collection by the respondent by 16:00 on 8 April 2021 via a courier which he shall organise.

16. The applicant agrees and undertakes not to retain copies of any of the documents at paragraph 15 above or the material at paragraph 14c and d above, and shall destroy any such copies currently within her power, possession or control, although she shall deal with post subsequently arriving at the family home in accordance with paragraphs 17 and 18 of this order going forwards.

17. The applicant undertakes not to open any post addressed to the respondent arriving at the family home, although this shall not extend to post addressed to the parties jointly or concerning any properties or other assets owned jointly by the parties.

18. The applicant agrees and undertakes from today's date to store all post addressed to the respondent arriving at the family home, and the respondent shall be at liberty to organise collection of the same.

Statements pursuant to PD 37A para 2.2

I understand the undertakings that I have given, and that if I break any of my promises to the court I may be sent to prison for contempt of court

.....

Nadia Zahmoul

I understand the undertakings that I have given, and that if I break any of my promises to the court I may be sent to prison for contempt of court.

.....

Karim Zahmoul

Orders

IT IS ORDERED THAT:

Pension update

19. The respondent shall, by no later than 16:00 on 14 April 2021, send to the applicant a summary of the current balance of all pension assets held by himself along with documentation showing where the underlying funds are held.

Specific disclosure – cryptocurrency

20. The respondent shall, by 16:00 on 10 May 2021, send to the applicant itemised transaction statements in respect of all trading platforms (within the definition at paragraph 4d above) on which he has or has had an account in the period 1 January 2019 to date and such statements setting out transaction histories for all crypto-assets to the extent not held within those trading platforms for the same period. These statements shall span the period from 1 January 2019 to date and shall show all crypto-asset transactions carried out by the respondent within that period.

Replies to questionnaire

21. Both parties shall send to the court and serve on the other party their respective replies to the other's questionnaire and request for further documents (as amended at today's hearing) by 16:00 on 10 May 2021.

Schedule of deficiencies and supplemental questionnaire

22. Both parties shall send to the court and serve on the other a schedule of deficiencies and supplemental questionnaire and request for further documents if so advised by 16:00 on 1 June 2021.

Replies to schedule of deficiencies and supplemental questionnaire

23. The respondent shall send to the court and serve on the applicant his replies to her schedule of deficiencies and supplemental questionnaire and request for further documents save for just exceptions by 21 June 2021.

Property values

24. The parties shall endeavour to agree the values of all the properties listed at paragraph 3 above by 16:00 on 19 April 2021. In default of agreement by that date, any properties with non-agreed values shall be subject to a joint valuation by local marketing agents and the following consequential provisions shall apply:

- a. By 16:00 on 19 April 2021 the respondent shall propose in respect of each property three appropriate local marketing agents to produce a valuation report for the applicable subject property.**
- b. The applicant shall select one of the three agents for each property by 16:00 on 21 April 2021. The agents selected shall act as single joint experts.**
- c. The letters of instruction shall be prepared by the respondent in the first instance, sent to the applicant by 23 April 2021, and agreed by 26 April 2021 (or determined by the court in default of agreement).**
- d. The letters of instruction shall be sent to the experts by 16:00 on 27 April 2021.**
- e. The expert reports shall be sent to the court and the parties by no later than 16:00 on 17 May 2021. Any costs of translation shall be met by the parties in equal shares.**
- f. The valuations arrived at by the experts shall be adopted for FDR purposes.**
- g. Any costs charged by the experts for preparing the reports shall be met by the parties equally in the first instance.**

Tax

25. By 16:00 on 28 May 2021, the respondent shall serve on the applicant calculations carried out by his accountant quantifying the tax that would arise on:

- a. A sale, disposal or transfer (including to the other) of each party's interests in 3093 West Arrowhead Road, 3100 West Arrowhead Road and 240 Frost Street;**
- b. A disposal of the respondent's interest in 189 Litchfield Lane, 308D L'Estivaliere and Residence Zayzafoune;**
- c. The disposal of all investment assets listed at section 2.4 of the respondent's Form E save for his Crypto-assets';**
- d. A disposal of all Crypto-assets listed at section 2.4 of the respondent's Form E;**
- e. A transfer of the respondent's Crypto-assets to the applicant.**

26. The parties shall use their best endeavours to agree the above tax figures. In the event they cannot be agreed by 16:00 on the date 6 weeks prior to the FDR, the applicant shall have permission to serve on the respondent competing calculations from her own accountant, which shall be sent to the respondent by no later than 16:00 on the date 4 weeks prior to the FDR.

Part 25 applications

27. The applicant's application made under Part 25 of the FPR 2010 and dated 25 March 2021 is dismissed.

Delivery up of laptop and hard drive to be held in escrow

28. The applicant shall forthwith deliver up to the respondent's solicitors a laptop computer used by Jade Mia, a hard drive (which contains files backed up from that laptop), a homemade computer made by the respondent, a USB or other storage device containing all other material she asserts is relevant to the potentially disputed extent of the respondent's Crypto-asset holdings and dealings and a folder containing all printouts in the applicant's possession or under her control that derive from the same. These items shall be held in escrow until the conclusion of these proceedings or further order pursuant to paragraph 10d above.

Evidence regarding housing needs

29. Each party shall serve on the other party copy particulars of properties they consider to be suitable to meet their own housing needs and the housing needs of the other (limited to 5 of each) by 16:00 on the date 6 weeks prior to the FDR.

Updating disclosure

30. Each party shall serve on the other party their updating disclosure 16:00 on the date 6 weeks prior to the FDR. The respondent's updating disclosure shall include a concise narrative summary of changes in his Crypto-assets since the date of his Form E with applicable supporting documentation (to include updating transaction histories).

Without prejudice proposals

31. The parties shall make without prejudice proposals for the resolution of all matters in dispute by no later than 16:00 on the date four weeks prior to the FDR.

General provisions for Private FDR

32. Notwithstanding that the FDR is to be conducted privately, the following provisions of the FPR shall nonetheless apply:

- a. Rule 9.17(3) - filing with the tribunal details of all offers and responses.**
- b. Rule 9.17(6) - parties must use best endeavours to reach agreement**
- c. Rule 9.27 - pre FDR costs statements including forward estimates**
- d. Rule 9.27(A)(1)(b) – duty to file an open proposal for settlement within 21 days of the FDR.**

Further hearing

33. The application shall be listed for a directions hearing before Her Honour Judge Cope on 3 August 2021 to begin at 10:00AM with a time estimate of half a day, it being the intention of the parties to have a private FDR hearing before that day pursuant to their agreement at paragraph 8 above. This hearing may be vacated upon the lodging of an agreed directions order or a final consent order.

Costs

34. There shall be no order as to costs in respect of the respondent's D11 application for return of purported Imerman documents.

35. The applicant shall pay a contribution towards the costs of the respondent's costs incurred in defending her Part 25 application, summarily assessed at £2,750 (on the basis that no VAT is payable).

36. Save for the above, costs in the application.

Permission to appeal

37. The applicant's oral application for permission to appeal paragraph 27 of this order is dismissed.

LISTING NOTICE

Please be advised that, although every effort will be made to ensure that your case is heard on the date and time allocated, you may experience delays at court. The Judges list several cases at the same time, as from

experience, they know that parties often need time to discuss issues at court before appearing before the Judge. This practice also enables the court to make optimum use of judicial time, as many cases settle before the day fixed for hearing.

On rare occasions it may be necessary to re-schedule the hearing.

We will keep you informed as to any issues which may affect the hearing of your case.

APPLICATION TO ADJOURN HEARING

If an application to adjourn is made within 14 days of the hearing, the following fees are payable:

Application on notice: £155

By consent: £50

Cheques should be made payable to HMCTS. If you are on a low income or in receipt of benefits you may be eligible for fee remission. Please refer to form EX160A on our website <http://www.justice.gov.uk/about/hmcts/>.

Dated: 23rd April 2021